

- (vi) Visual aspect of the bulk and scale as viewed from the private open space and living areas of adjoining properties;
- (vii) Acceptability of amenity impacts on adjacent properties with regard to solar access, and visual and acoustic privacy;
- (viii) Views available from the subject site and adjoining properties including an assessment against the Land and Environment Court Views Planning Principle in *Tenacity Consulting v Warringah Council* [2004] NSWLEC 140 at 25-29;
- (ix) In areas of heritage significance, the importance of preserving the front portion of the building by providing an additional setback from the front building line.

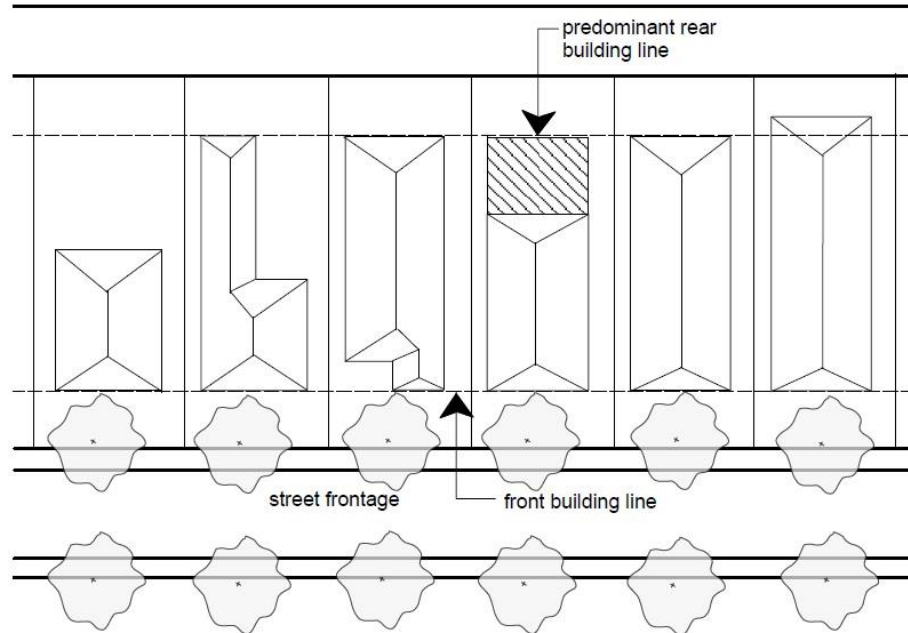


Figure 6 Example of front and rear predominant building lines on regular shaped lots

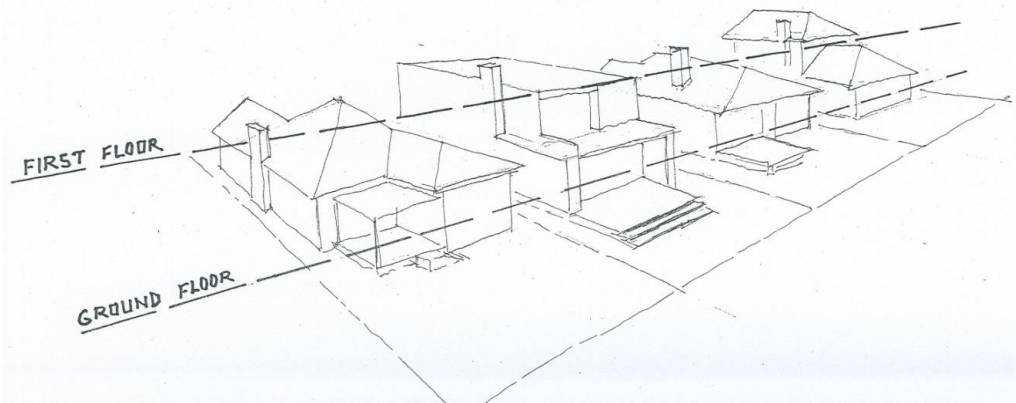


Figure 7 Example of ground and first floor level predominant rear building lines

1.2.2 Side Setbacks

Controls

- (a) Comply with the minimum setbacks as follows:

Location of proposed works	Side setback (min.)
Ground Floor	0.9m
First Floor	0.9m